

SENATE No. 2826

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 11, 2025.

The committee on Housing to whom was referred the petition (accompanied by bill, Senate, No. 1008) of Joan B. Lovely, James K. Hawkins, James B. Eldridge, Jason M. Lewis and other members of the General Court for legislation relative to the Massachusetts rental voucher program, report the accompanying bill (Senate, No. 2826).

For the committee,
Julian Cyr

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**In the One Hundred and Ninety-Fourth General Court
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An Act relative to the Massachusetts rental voucher program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 121B of the General Laws is hereby amended by adding the
2 following section:-

3 Section 61. Massachusetts Rental Voucher Program

4 (a) The executive office of housing and livable communities shall, subject to
5 appropriation, establish and administer through administering agencies, including but not limited
6 to regional administering agencies and local housing authorities, the Massachusetts Rental
7 Voucher Program, herein called MRVP, a program of rental assistance for eligible low-income,
8 very low-income and extremely low-income households through mobile and project-based
9 vouchers for the purpose of obtaining decent, stable and affordable housing and promoting
10 economically mixed housing. The executive office shall issue the number of vouchers
11 anticipated to completely utilize, but not exceed, the appropriation for this program; provided
12 further, that the executive office shall establish the amounts of the mobile and project-based

vouchers so that the appropriation in this item shall not be exceeded by payments for rental assistance and administration.

(b) To be eligible to receive assistance under this section, a household shall have a net income that does not exceed 80 per cent of the area median income, as determined by the United States Department of Housing and Urban Development. The executive office may award mobile vouchers to eligible households occupying MRVP project-based units that shall expire due to the non-renewal of project-based rental assistance contracts. Households shall meet eligibility requirements as required in this section and applicable regulations and guidance issued by the executive office. Not less than 75 per cent of all vouchers issued statewide shall be targeted to households whose income at initial eligibility does not exceed 30 per cent of the area median income.

(c) A payment standard is the amount used by an administering agency to calculate the maximum amount of the MRVP subsidy. Except as provided under paragraph (d), the payment standard for each size of a dwelling unit in a market area shall not exceed 110 per cent of the fair market rent, or Small Area Fair Market Rent as established annually by the United States Department of Housing and Urban Development, for the same size of dwelling unit in the same market area, and shall be not less than 100 per cent of that fair market rent. The executive office shall allow administering agencies to request exception payment standards within fair market rental areas, subject to criteria and procedures established by the executive office. The executive office shall periodically review payment floor and ceiling limits to ensure they remain responsive to market conditions. Agencies may, at their discretion, maintain the previous payment standard for households remaining in place following a reduction in fair market rent, in accordance with regulations issued by the executive office.

(d) Except as otherwise provided in this section for reasonable accommodations, the executive office may require an administering agency to submit the payment standard of the administering agency to the executive office for approval if the payment standard is less than 100 per cent or exceeds 110 per cent of the fair market rent. An administering agency may establish a payment standard of up to 120 per cent of the fair market rent, where necessary, as a reasonable accommodation for a person with a disability, without approval of the executive office. An administering agency may also establish a payment standard above 120 per cent of the fair market rent as a reasonable accommodation for a person with a disability, in accordance with criteria and procedures set forth by the executive office, and without requiring individual case-by-case approval. In evaluating such reasonable accommodation requests, the executive office shall strive to minimize burdens on households requesting reasonable accommodations. In connection with the use of any increased payment standard established or approved pursuant to either of the preceding two sentences as a reasonable accommodation for a person with a disability, the executive office may not establish additional requirements regarding the amount of adjusted income paid by such person for rent. The executive office may also approve increased payment standards in cases involving domestic violence or other special circumstances, as defined by regulation. Other special circumstances may include risks of homelessness, housing instability, or other hardships as identified by the executive office.

(e) A household that receives tenant-based assistance under this section, with respect to any dwelling unit, shall not pay for rent more than 30 per cent of the monthly adjusted net income of the household; except that households receiving tenant-based assistance under this section may pay more than 30 per cent of the monthly adjusted net income of the household, at their option, in excess of the payment standard for the voucher, provided that this amount may

not exceed 40 per cent of the monthly adjusted net income of the household at initial occupancy; provided, that the executive office shall adjust household rent for those paying separately for utilities.

(f) The rent for dwelling units for which a housing assistance payment contract is established under this subsection shall be reasonable in comparison with rents charged for comparable dwelling units in the private, unassisted local market.

(g) For each dwelling unit for which a housing assistance payment contract is established under this section, the administering agency shall ensure that the unit meets the minimum standards of fitness for human habitation as required by the state sanitary code. The executive office or administering agency may accept a certificate of inspection or compliance issued by a municipal code enforcement or public health agency, or other evidence of a recent satisfactory inspection under the state sanitary code, in lieu of conducting a new initial inspection. The executive office may establish procedures for cost-sharing or reimbursement where administering agencies bear inspection costs in instances where municipalities are not conducting inspections due to policy or resource constraints. The executive office may waive or alter the requirement for a pre-occupancy inspection in the event of a declared emergency or other circumstances as determined by the executive office; provided, that such waiver is consistent with protecting tenant health and safety; and provided further, that any unit receiving a waiver shall be inspected within a reasonable time after occupancy.

(h) The monthly administrative fee for all vouchers administered under this section shall be established by the executive office in an amount adequate to effectively administer the program. The executive office shall review the administrative fee no less frequently than once

every three years and may adjust the amount to account for inflation, program cost changes and other factors specific to the commonwealth. In establishing and revising the administrative fee, the executive office may consider, but shall not be bound by, the administrative fee rates for the United States Housing Choice Voucher Program. The executive office shall also consult with administering agencies, including but not limited to regional administering agencies and local housing authorities in determining the administrative fee to ensure the fee reflects operational needs and local conditions.

(i) The executive office shall maintain and administer a single voucher management system and shall collect data on the utilization of rental vouchers in each fiscal year under this program. This data shall include, but not be limited to: the location and value of each voucher-assisted unit; the number and average value of mobile and project-based vouchers currently distributed in the Commonwealth, in each county, and in each municipality; the household size; age of the head of household and each member of the household; the race and ethnicity of each household; and the income and source of income of each household. The executive office shall report to the house and senate committees on ways and means and the house and senate chairs of the joint committee on housing annually on the utilization of rental vouchers in each fiscal year under this program. The executive office shall collect and report on the data collection as required under Chapter 334 of the Acts of 2006.

(j) Where appropriate, implementation and operational details may be established through such regulations. The executive office shall affirmatively consult with administering agencies, tenant advocacy organizations, and other directly affected stakeholders, including but not limited to those representing voucher holders, prior to finalizing any such regulations.

103 (k) The executive office of housing and livable communities and its contracted regional
104 administering agencies may accept applications from landlords on behalf of their tenants under
105 this section.

106 SECTION 2. The executive office shall promulgate regulations pursuant to section 61 of
107 chapter 121B, as established by this act, by December 31, 2027.